U.S. Department of Veterans Affairs

HOW TO CHALLENGE A DEFAULT FEE ALLOCATION

What if I am a claimant and believe that an attorney or agent who represented me did not earn the fee called for in the Department of Veterans Affairs (VA) fee allocation notice letter or in our fee agreement?

You should file a request for an Office of General Counsel (OGC) fee review. If your request meets the requirements discussed below, OGC will provide an individualized review of your case and decide reasonable fees.

What if I believe an attorney or agent being allocated a fee under VA's fee allocation notice letter is legally ineligible to receive a fee?

You should file a VA Form 10182 with the Board of Veterans' Appeals rather than a request for OGC fee review.

What if I am an attorney or agent who represented in the case and do not agree with VA's default fee allocation?

You are free to reach an agreement with the other parties regarding fees. If you reach an agreement, you need not notify VA; once VA releases the fees, you can simply re-allocate in accord with your agreement.

If you are unable to reach an agreement, you can file a request for an OGC fee review. If your request meets the requirements discussed below, OGC will provide an individualized review of the case and decide reasonable fees.

When must I file my request for an OGC fee review?

You have **60 days** from the date of the fee allocation notice to file a request for an OGC fee review. This means that a request meeting all of the requirements listed below must be filed electronically or at the address specified below prior to expiration of the 60-day time limit.

How do I submit my request for an OGC fee review?

You must send your request to OGC either:

Electronically: Instructions posted on https://www.va.gov/ogc/accreditation.asp

or

Mail: Department of Veterans Affairs
Office of General Counsel (022D)
810 Vermont Avenue, NW
Washington, DC 20420

What must my request for an OGC fee review include?

Your request must meet **all** of the following requirements:

- Your request must be in writing. A written letter or a typed electronic communication is fine. *A phone call does not satisfy this requirement.*
- Your request must include the full names of the veteran (and claimant if different from the veteran) and all attorneys or agents who represented in the case, the VA file number, and the date of the decision awarding benefits. *This information can be found on the fee allocation notice letter.*
- Your request must set forth your proposal as to a reasonable fee allocation and explain the reason(s) for the proposal. The factors that OGC considers in making a fee reasonableness decision are listed below.
- Your request must include (or attach) any argument and evidence you want OGC to consider.

Must I inform the other parties of my request for an OGC fee review?

No. If OGC receives a timely filed request meeting the requirements above, OGC will initiate a motion for a fee review by sending notice to all parties.

What factors are considered when OGC makes a fee reasonableness decision?

1. The extent and type of services the attorney or agent performed;
2. The complexity of the case;
3. The level of skill and competence required of the attorney or agent in giving the services;
4. The amount of time the attorney or agent spent on the case;

5. The results the attorney or agent achieved, including the amount of any benefits recovered;
6. The level of review to which the claim was taken and the level of the review at which the attorney or agent was retained;
7. Rates charged by other attorneys or agents for similar services;
8. Whether, and to what extent, the payment of fees is contingent upon the results achieved;
9. If the attorney or agent was discharged or withdrew from representation before the date of the decision awarding benefits, the reasons why the attorney or agent was discharged or withdrew; and
10. If applicable, the fee entitlement of another attorney or agent in the case.

In cases where an attorney or agent still represented the claimant at the time of VA's decision awarding benefits, OGC will presume their fee is reasonable if it is 20% or less of the past-due benefits, unless there is clear and convincing evidence to the contrary. If the attorney or agent was not the representative at the time of VA's decision awarding benefits, OGC will assign a fee that fairly and accurately reflects the attorney or agent's contribution to and responsibility for the benefits awarded.

What happens after OGC initiates a motion for fee review?

- Any party may file a response to OGC's motion not later than 30 days from the date on which OGC issues the motion. When filing a response, a party must serve all of the other parties with a copy of the response.
- OGC may extend the time period for response for a reasonable period of time if sufficient cause is shown.
- OGC will issue a fee reasonableness decision on the matter, which is appealable to the Board of Veterans' Appeals.

OGC Fee Review Request Sample:

Subject: OGC Fee Review Request

I am requesting OGC fee review related to the Fee Allocation Notice (FAN) from the U.S. Department of Veterans Affairs dated xx/xx/xxxx. The FAN pertains to a xx/xx/xxxx VA decision awarding past-due benefits.

The claimant's name is [claimant], the Veteran's name is [Veteran], the Agents/Attorneys who represented the claimant are [Agents/Attorneys], and the VA file number is: xxx-xx-xxxx.

I am proposing that I receive [insert monetary amount or fraction] of the withheld fee because [insert the reasons why you believe this amount is appropriate].

[Attach any evidence you wish to be considered and explain how the evidence supports the amount of the withheld fee you are requesting.]

Sincerely,

John Doe

[Claimant or Attorney/Agent]